

**CHAPTER lxviii.**

An Act to authorise the City and South London Railway Company the Central London Railway Company the London Electric Railway Company and the Metropolitan District Railway Company or any of them to make agreements with each other and with the London General Omnibus Company Limited for the purpose of establishing a common fund the application of such fund and for other purposes. A.D. 1915.

[29th July 1915.]

WHEREAS the railways owned or worked over by the City and South London Railway Company the Central London Railway Company the London Electric Railway Company and the Metropolitan District Railway Company (all in this Act referred to as "the Railway Companies") are connected at various places in the Metropolis and there is a large interchange of passenger traffic between such railways and also between such railways and the services of omnibuses run by the London General Omnibus Company Limited (in this Act referred to as "the Omnibus Company"):

And whereas the Railway Companies or some of them are adversely affected by the present war:

And whereas in order to maintain the requisite services for the convenience of the public and to provide for increased wages and other expenses consequent on the said war and to enable further facilities to be afforded it is necessary that the Railway Companies should have power to deal with their respective revenues in manner hereinafter provided:

And whereas it is therefore expedient that the provisions hereinafter contained should be made:

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And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

Short title.

1. This Act may be cited as the London Electric Railway Companies' Facilities Act 1915.

Agreements
with regard
to common
fund.

2. The City and South London Railway Company the Central London Railway Company the London Electric Railway Company and the Metropolitan District Railway Company or any one or more of them may enter into carry into effect vary and rescind agreements between themselves and with the Omnibus Company for and with respect to the payment into a common fund of the whole or such part as the agreement may prescribe of the balances of the respective revenues of all the companies parties to any such agreement for each half-year ending on a thirtieth June or thirty-first December remaining after providing for the payments by such respective companies specified or referred to in the First Schedule to this Act to the close of such half-year in so far as such payments are applicable to such respective companies and the administration and distribution of such fund in the manner provided by this Act:

Provided always that no such agreement shall be operative or have effect until as regards each company party thereto it has received such sanction as is provided for in the Second Schedule to this Act Provided further that a copy of every such agreement shall be deposited with the Board of Trade and if the Board so order shall be published in such manner as the Board shall direct.

Deficiencies
to be made
good in cer-
tain events
and distribu-
tion of
balance of
common
fund.

3. Every such agreement shall provide (inter alia) that at all times during its continuance—

(A) If the revenue of any such half-year as aforesaid of any company party to such agreement is not sufficient to meet the payments specified or referred to in the First Schedule to this Act to the close of such half-year and applicable to such company such company shall be paid out of the common fund

such sum as may be necessary to make good the deficiency: A.D. 1915.

- (B) The balance of the common fund (after payment thereof of such deficiencies as aforesaid if any) remaining at the end of each such half-year shall be distributed among the companies parties to such agreement in such proportions as shall be from time to time determined by agreement between such parties.

4. Nothing in this Act contained or in any agreement to be entered into under this Act shall prejudice or affect the priority of or security for any of the payments specified in the First Schedule to this Act. Priority of or security for scheduled payments not affected.

5. Nothing in this Act contained shall be deemed to confer any powers rights or exemptions on the Omnibus Company. Act not to confer powers &c. on Omnibus Company.

6. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Railway Companies in such proportions as may have been or may be agreed between them. Costs of Act.

The SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

PAYMENTS WHICH ARE TO BE DEDUCTED FROM REVENUE.

(A) Expenditure chargeable to revenue.

(B) (1) Rents rentcharges dividends on rentcharge stocks (2) fixed charges other than the foregoing (3) chief rents wayleaves lump sum tolls &c. (4) rents and other payments in respect of lines jointly owned leased or jointly leased or worked or jointly worked (5) payments in respect of running powers and (6) payments under any Acts of Parliament leases or agreements.

(C) Interest on debentures debenture stocks mortgages and other loan capital and borrowed money.

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(D) Payments in respect of dividends or interest under guarantees in respect of shares or stocks or loan capital of other companies.

(E) Dividends on guaranteed stocks.

(F) Dividends on preference shares or stocks (other than until and so far as from time to time otherwise agreed the second preference stock of the Metropolitan District Railway Company) in so far as the same are not authorised to be and are not actually paid out of capital.

(G) Depreciation and reserve.

(H) Any other payments which may be specially provided for in the agreement.

THE SECOND SCHEDULE.

PROVISIONS AS TO CONSENTS OF SHAREHOLDERS.

The sanction of a resolution passed by three-fourths of the votes of those proprietors of the company entitled to vote who are present in person or by proxy at a general meeting of the company specially convened for the purpose.

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